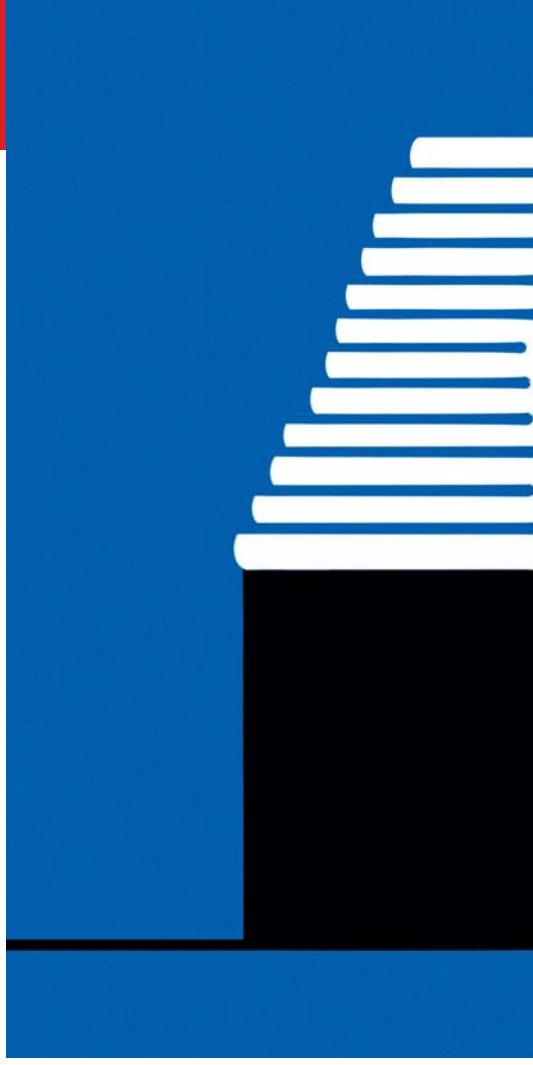


WHY JUDICIAL APPOINTMENTS ARE DELAYED

Tardiness driven by a tangle involving collegiums and the Centre characterises the filling up of vacant positions of high court judges. And pending cases pile up inexorably

By Kaushik Deka

It was a grand occasion where the two pillars of democracy—the executive and the judiciary—came together to create frameworks for faster and inclusive delivery of justice in India. Held after a gap of five years, and addressed by Prime Minister Narendra Modi and Chief Justice of India N.V. Ramana, the joint conference of chief ministers and chief justices of high courts at Delhi's Vigyan Bhawan on April 30 laid bare one of the biggest challenges facing the judicial mechanism in the country—a serious shortage of judges, particularly in the high courts.

The 25 high courts across India have 1,104 positions for judges, but 378 of them lay vacant as on March 31, 2022. Nine new high court judges were appointed after the conference. In the lower judiciary, there are 24,521 posts for judges, but 5,180 are yet to be filled up as on April 7, 2022. In fact, the share of vacancies in the high courts has jumped since 2014—from 29 per cent to 35 per cent now—when the Narendra Modi-led government took charge at the Centre. This despite the fact that between 2014 and 2021, the Centre has been appointing annually an average of 92 High Court judges, up from 76, between 2006 and 2014. Besides, since 2014, the Union government has created 198 new positions for judges in the high courts. In the lower courts, the government has increased the number of seats for judges by over 5,000—and appointed many of them—in the past eight years, taking the total to 24,521. This has brought about a marginal decline in the share of vacant positions in these courts—from 23 per cent of the total sanctioned strength in 2014 to 21 per cent now.

Undoubtedly, the spiralling vacancies have added to the judiciary's burden, multiplying the ever-increasing case load. With nearly 48 million cases pending in various courts, every judge has an average pendency of 2,356 cases under his gavel. As Justice Ramana points out, despite an increase of judges in lower courts by 16 per cent since 2016, when the last conference was held, pendency of cases had gone up by 55 per cent. "The delay in hiring judges adds to the workload of incumbent ones and,